

24STLC05803 24STLC05803

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-27

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Case Number: 24STLC05803 Hearing Date: July 27, 2026 Dept: 25

HEARING DATE: Mon., July 27, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Fernandez

v. Johnson COMP.

FILED: 08-14-24

CASE NUMBER: 24STLC05803 FAC FILED: 12-26-25

NOTICE: OK

PROCEEDINGS: MOTION

TO COMPEL PLAINTIFF KISH FERNANDEZ'S DEPOSITION; ALTERNATIVELY, REQUEST TO REOPEN OR EXTEND DISCOVERY FOR THE LIMITED PURPOSE OF TAKING PLAINTIFF'S DEPOSITION; REQUEST FOR MONETARY SANCTIONS

MOVING PARTY: Defendant

Jason Parker Johnson

RESP. PARTY: Plaintiff Kish Fernandez

MOTION TO COMPEL DEPOSITION; REQUEST FOR SANCTIONS

(CCP §§ 2025.450)

TENTATIVE RULING:

The Court DENIES Jason

Parker Johnson's motion to compel Kish Fernandez's deposition, request to

reopen or extend discovery, and request for sanctions.

Johnson is to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on July 1, 2026 ☐
Late ☐ None

REPLY: Filed
on July 20, 2026 [
] Late [
] None

ANALYSIS:

Kish

Fernandez sued Jason Parker Johnson for breach of an employment agreement, breach of a lease agreement, and general negligence in August 2024. Johnson's counsel substituted into this action in April 2026. To allow Johnson's counsel to come up to speed, the Court continued the trial date from May 12, 2026 to July 28, 2026, with all discovery and motion cutoff dates moved to comport with that trial date. Johnson now moves to compel Fernandez's deposition on a deposition notice propounded on June 29, 2026. The Court DENIES Johnson's motion.

Discovery in this matter was to have been completed on or before the 30th day preceding trial; any discovery motions were to have been heard on or before the 15th day preceding trial. (Code Civ. Proc., § 2024.020, subd. (a).) Johnson filed this motion on June 30, 2026, to be heard the day before trial. As the Court ruled previously when it denied

Johnson's ex parte application either to continue the trial (again) or to shorten the time for hearing this motion, this matter has been pending since August 2024. Johnson had plenty of time to depose Fernandez before the eve of trial.

Even if the Court made an additional allowance for Johnson's last-minute retention of counsel, he still waited weeks to serve a deposition notice on Fernandez.

Suffice it to say, the Court also DENIES Johnson's request to sanction Fernandez. Johnson is to give notice.

Johnson is to give notice.